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Case Number: 25PSCV04031 Hearing Date: September 24, 2026 Dept: H

Wu v. General

Motors LLC,

Case No. 25PSCV04031

ORDER ON MOTION

FOR ATTORNEYS' FEES

Plaintiff

Shaoliang Wu's Motion for Attorneys' Fees and Costs is GRANTED in the reduced amount of \$14,262.90.

Background

Plaintiff Shaoliang Wu

("Plaintiff") brought this lemon law lawsuit against General Motors LLC

("Defendant") in connection with the purchase of a new 2024 Cadillac Escalade ESV.

On November 6, 2025,

Plaintiff filed a complaint, asserting causes of action against GM and Does 1-100 for: (1) Breach of Implied Warranty, (2) Breach of Express Warranty, (3) Violation of the Song Beverly Consumer Warranty Act, and (4) Violation of Civil Code Section 1793.2, subdivision (b).

On June 3, 2026, Plaintiff

filed a notice of settlement of entire case.

An OSC Re: Dismissal (Settlement) is scheduled for September

24, 2026.

Legal Standard

“If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) “[T]he negotiation of a possible settlement does not excuse the failure to proceed with due diligence in the filing of pleadings, absent some understanding that pleadings need not be filed while negotiations are in process.” (Turley v. Turley (1967) 254 Cal.App.2d 169, 173.) In the context of an award of attorneys’ fees “the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys’ fee application, and in the court’s fee award.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 631.) “[I]t is inappropriate and an abuse of a trial court’s discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff’s damages or recovery in a Song-Beverly Act action.” (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 510.)

In assessing attorney’s fees under the Song-Beverly Act, a trial court must make an “initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnyk v. Robledo (1976) 64 Cal.App.3d 618,

623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys’ fees award.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “[P]aralegal fees may be awarded as attorney’s fees if the trial court deems it appropriate.” (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where a party is challenging the reasonableness of attorney’s fees as excessive that party must “attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with

expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) It is the burden of the challenging party “to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (Id. at 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Ibid.)

A “court should defer to the winning lawyer’s professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker.” (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel’s hourly rates, the court will deem an attorney’s hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

Plaintiff moves the Court, per the Song-Beverly Act and Civil Code section 1794, subdivision (d), for an award of attorney’s fees in the amount of \$18,909.15.

Entitlement to Fees

Plaintiff contends he is the prevailing party and is entitled to recover attorneys’ fees from Defendant pursuant to the settlement agreement. (Rixit Decl., ¶¶ 15-16.) Following the mediation, the matter resolved on a cash-and-keep basis, with attorney fees and costs left for determination by noticed motion. (Rixit Decl., ¶ 15.) Defendant has not filed an opposition and therefore does not dispute Plaintiff is the prevailing party.

Accordingly, Plaintiff is the prevailing party and thus entitled to attorneys’ fees and costs.

Reasonableness of Fees

To decide the award, the Court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Hourly Rate

Reasonable attorneys' fees are determined by examining the time spent and the reasonable hourly rate charged. (Serrano v. Priest (1977) 20 Cal.3d 25, 48-49.) Other considerations that may result in an upward or downward shift of the fees include the novelty and difficulty of the case, the legal skill needed to render services to the prevailing party, the customary fee for similar work, whether the case was taken under contingency, the attorneys' experience and reputation, and other circumstances. (Id.)

Here, Plaintiff seeks to recover a total of \$18,909.15 in attorneys' fees for work performed by Plaintiff's counsel, Yoseph Rixit. (Rixit Decl., ¶¶ 21, 24.) Mr. Rixit's billing rate is \$450.00 per hour. (Rixit Decl., ¶ 18.) The Court finds Mr. Rixit's asserted rate to be reasonable given the current market rates for similar counsel, and Mr. Rixit's education, experience, and specialized qualification.

Billed Hours

Mr. Rixit claims 29.50 hours of legal work in this matter, as well as an anticipated 4 hours to review opposition, draft a reply, and attend the hearing. (Rixit Decl., ¶¶ 18, 23, Ex. A.)

The Song-Beverly Act provides for the recovery of "costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer." (Civ. Code, § 1794, subd. (d).) A verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) However, counsel bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks

unreasonable or unnecessary since “padding in the form of inefficient or duplicative efforts is not subject to compensation.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Upon review of the attached billing records, the billed time does not seem unreasonable or unnecessary. Counsel did not charge for administrative or clerical tasks or duplicative work and did not charge for case-management and administrative time. That said, since no opposition has been filed, the Court declines to award the anticipated hours.

Multiplier

Plaintiff requests a multiplier of 1.35. (Mot., p. 7.) Plaintiff argues a multiplier is warranted because of the contingency risk, the result obtained, and counsel's fluency in Mandarin. (Mot., p. 7.)

The factors that courts look at to determine if a multiplier is reasonable are: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

While the matter was contingent in nature, there is no evidence that this case involved any novel issues or required exceptional skill.

Accordingly, Plaintiff's request for a multiplier is denied.

Costs

Plaintiff seeks \$987.90 in costs and expenses. (Rixit Decl., ¶ 22, Ex. A.) The fees requested are filing fees, process server fees, and mediation fees. (Rixit Decl., Ex. A.) As discussed above, the mediation resulted in resolution on a cash-and-keep basis, with attorney fees and costs left for determination by noticed motion.

The memorandum of costs is prima facie evidence of reasonableness regarding costs and expenses. (Whatley-Miller v. Cooper (2013))

212 Cal.App.4th 1103, 1115.)

Filing fees, motion fees, and process server fees are recoverable under Code of Civil Procedure section 1033.5, subdivisions (a)(1), (a)(4).

Here, the costs claimed appear to be proper, and the costs fall under the recoverable costs of section 1033.5, subdivision (a).

Accordingly,

the motion for attorney's fees is GRANTED in the reduced amount of \$14,262.90 (i.e. \$13,275 for attorney's fees + \$987.90 in costs).